



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

September 01, 2022

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 14145
(EIGHTH REVISION)

EXPIRATION DATE: 2026-07-31

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Department of Defense
Scott AFB, IL
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the stowage of Class 1 (explosive) materials, in certain locations of a cargo hold above, below and adjacent to specified machinery spaces other than Category A. In addition, it authorizes the handling of Class 1 materials in certain locations of a cargo hold and on the transfer deck (main deck) while in transit and loading and unloading while underway at sea. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Party status will not be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 176.4(b) and (c) in that explosives are not authorized to be loaded and unloaded while underway at sea; § 176.116(c) in that all compartments and magazines of explosives are to be locked or suitably secured; § 176.116(d) in that all explosive materials are to be securely stowed to prevent movement in transit; § 176.116(e)(1) in that portions of the cargo hold containing explosives are located above or below a machinery space other than Category A;

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§ 176.116(e)(3) in that explosives are stowed in a cargo hold adjacent to a machinery space other than Category A at a distance less than three meters from the machinery space bulkhead; and § 176.150 in that all radio and radar equipment is to be secured during unloading, loading or handling operations, except as specified herein.

5. BASIS: This special permit is based on the application of the Department of Defense, dated June 8, 2022, and submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
As appropriate for Class 1 materials (explosives)	1.1, 1.2, 1.3, 1.5	As Appropriate	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING: The provisions of this special permit apply only to Class 1 (explosive) materials when packaged in full conformance with the applicable requirements and stowed either as containerized or break-bulk cargo.

- b. OPERATIONAL CONTROLS:

(1) When mixed cargoes are loaded with Class 1 material, the Class 1 material must be loaded as far away as practicable, in conformance with the provisions of the HMR, notwithstanding the alternatives granted by this special permit.

(2) When Class 1 material is handled under the terms of this special permit, pre-staging of material on the transfer deck should normally be for less than twenty-four hours in duration, and in all cases must be kept to the minimum necessary to accomplish the evolution. In addition, whenever possible, pre-staged Class 1 material should be placed in locations on the transfer deck as far as practicable from accommodations and machinery space.

8. SPECIAL PROVISIONS: The following construction and operating requirements apply to this special permit:

- a. Spaces subject to the terms of this special permit are those specified in enclosure (2) to the NAVSEA application dated 27 January 2005 and entitled *T-AKE Machinery Spaces Adjacent to Class 1 Cargo Spaces*.
- b. The transfer deck subject to the terms of this special permit is as specified in enclosure (2) to the NAVSEA application dated 29 March 2005 and entitled *T-AKE Cargo Stowage and Handling Arrangement*.
- c. Bulkheads and decks separating cargo spaces and machinery spaces covered by this special permit shall be insulated and maintained to A-60 standard.
- d. Bulkheads and decks separating the transfer deck from the incinerator room and the galley shall be insulated and maintained to a Class A-60 standard.
- e. Bulkheads and decks separating the transfer deck from any other spaces shall be insulated and maintained to at least a Class A-0 standard.
- f. When Class 1 cargo is stowed in a hold space adjacent to a machinery space bulkhead as permitted by this special permit, the Class 1 cargo must be stowed a minimum horizontal distance of 0.5 meters from the machinery space bulkhead, insulated to A-60 standard.
- g. When Class 1 cargo is stowed in a hold space above a machinery space as permitted by this special permit, the Class 1 cargo must be stowed on pallets or an equivalent arrangement that provides an approximate minimum separation of 125 mm above the deck, insulated to A-60 standard.
- h. When Class 1 cargo is stowed in a hold space below a machinery space as permitted by this special permit, the Class 1 cargo must be stowed a minimum distance of 1.15 meters from the machinery space deck, insulated to A-60 standard.
- i. Flammable or combustible liquids may not be stowed in the machinery spaces covered by this special permit.
- j. To the extent practicable, when Class 1 cargo is handled on the transfer deck a horizontal distance of 6 m (20 feet) should be maintained from any fire, machinery exhaust, galley uptake or locker used for combustible stores.
- k. To the extent practicable, other hazardous cargo that is involved in handling and transfer and for which segregation from Class 1 cargo is required must not be pre-staged in locations in the vicinity of the Class 1 cargo.

- l. When handling Class 1 cargo, precautions must be taken with explosives sensitive to electromagnetic radiation; the use of non-essential radio and radar equipment during handling operations is not permitted.
- m. Pre-staged Class 1 cargo as well as other pre-staged cargo in the vicinity of Class 1 cargo must be suitably secured to prevent unintended sliding or shifting.
9. MODES OF TRANSPORTATION AUTHORIZED: Cargo vessel.
10. MODAL REQUIREMENTS:
- a. This special permit applies only to the following named vessels built under NASSCO Hulls 471 to 483 and 488 to the T-AKE Auxiliary Dry Cargo/Ammunition Ship design while they are operated by the United States Navy Military Sealift Command:
- | <u>NASSCO #</u> | <u>Navy #</u> |
|-----------------|---------------|
| 471 | T-AKE 1 |
| 472 | T-AKE 2 |
| 473 | T-AKE 3 |
| 474 | T-AKE 4 |
| 475 | T-AKE 5 |
| 476 | T-AKE 6 |
| 477 | T-AKE 7 |
| 478 | T-AKE 8 |
| 479 | T-AKE 9 |
| 480 | T-AKE 10 |
| 481 | T-AKE 11 |
| 482 | T-AKE 12 |
| 483 | T-AKE 13 |
| 488 | T-AKE 14 |
- b. A current copy of this special permit must be carried on board each vessel when operating under the terms of this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.

- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving cargo transported under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: ae